

Intentional Torts

- Plaintiff is an ordinary person, extreme sensitivity is ignored re: decision of valid tort claim.
- No incapacity defendants

Battery

- **Harmful/offensive** (unpermitted by a person ordinary sensitivity) **contact with Plaintiff's person** (anything connected with the Plaintiff – e.g., hitting a horse that you are on). The Defendant's body does not have to be involved and the contact doesn't have to happen immediately (e.g., poisoning).

Assault

- **Apprehension** (knowledge/awareness/understanding, *not* fear) of **immediate battery**. **Apprehension**: If P knows a touching cannot happen, then no assault (P knows gun isn't loaded); but if P doesn't know, then he may recover. **Immediate**: mere words lack immediacy (or may negate); even if conduct is present, look at the accompanying conduct. Subjunctive words, e.g., "If you weren't my best friend, I'd beat the crap out of you".

False Imprisonment

- **An act of restraint in a bounded area, unless** omission in light of preexisting obligation to assist P to move (wheelchair). **Restraint**: threats (that operate on the mind of a person of ordinary sensitivity, not extreme sensitive) are sufficient. P must know or be harmed (e.g., nurse cannot enter your bedroom at 3 a.m., when P is asleep). **Bounded Area**: Not exclusion; an area is not bounded if there is a reasonable means of escape that Plaintiff can reasonably discover (not dangerous, humiliating).

Intentional Infliction of Emotional Distress

- **Outrageous conduct** (exceeds all bounds of decency tolerated in a civilized society) and **Plaintiff must suffer severe distress (not mildly)**. **Outrageous hallmarks**: *repetitive or continuous, common carrier on inkeeper* ("you're too ugly to stay here"). Idea that Plaintiff is member of *fragile class* of persons: young, the elderly, pregnant women, a suspect classes insofar as those insults are concerned), the hoax (tasteless jokes probably do not exceed all bounds of decency, unless the defendant **knows**).

Trespass to land

- **Physical invasion (D or propelling tangible** (not light, noise) **object, including person) on land**, including soil below/air above to a reasonable distance. Mistake is not a defense, Defendant has the burden to know property lines.

Trespass to chattels/conversion

- The private money damage remedies for theft and vandalism of stuff, other than real estate, distinguished by the magnitude of the harm. If **small interference, trespass to chattels** (repair). If **significant**, then use **conversion** (entitled to full market value).

Personal Property

- **Abandoned** (actual relinquish/intent to relinquish title and control) vs. **lost** (no intent). **Finders' rights**: If abandoned, finder owns if he takes possession and has the intent to acquire title. **If lost**, owner is always allowed to recover. If property is <\$20, make a reasonable effort to find the owner, after one year, obtain title. If >\$20, give to police who must hold it for the statutory period (\$5000 > 3 years). If the owner does not claim within that period, it belongs to the finder.
- **Gifts: Inter-vivos gift**: Owner must have an **intent** to pass title (not merely to part with possession), valid **acceptance** by the recipient (generally silence is enough), and valid **delivery** (actual item or its representative (keys, deeds, etc.)) must be handed over, e.g., first party checks: Not delivered until the check is cashed (b/c donor may stop payment); third party check: when it is actually turned over; stock certifications: when handed over (no transfer of registration on corporate books necessary). When the donor gives the object to his own agent for the purposes of his own delivery, delivery has not happened yet. If **agent**, delivery upon delivery to donee's (not donor's) agent.
- Gift **causa mortis**: gifts given in contemplation of death by one who dies, to be valid, must be **imminent, objectively likely risk** of death. If donor survives, must return the gift; invalid if the donee dies first.
- **Liens**: the right to hold something as personal property as security for a debt. Requires: **debt for services rendered, a debtor with legal title to the property in the possession of the creditor**. A **general lien**: a right of a creditor in aggregate property as security for a general balance due (they can hold part to satisfy the debt). **Special lien**: right to retain specific property improved/acted upon as a security for a particular charge/claim for that one item (e.g., they don't have to return your car until you pay for the brake job) (if they give you the item, they release the lien, valid contract claim).
- **Bailments**: owner of personal property parts with possession for a particular purpose. There is generally a bailment for contents, if normal or typical (car includes spare tire and maybe a suitcase in the trunk). **Safe deposit boxes**: are bailments; parking lot where you leave your keys; park and lock are not a bailment. **A bailee has a duty of care** to make sure no harm comes to the bailed item, failure to care leads to liability. **Bailee is SL if bailee exceeds scope of the bailment, or bailee misdelivers the item at the end of the bailment, unless** person who receives item has documents suggesting that they have title (e.g., coat check). **Bailees can limit, but cannot contract away all liability**.

Affirmative defenses to intentional Torts

- **Consent**, *so long as* has legal capacity (children can consent to things that are age appropriate)¹, **unless** fraud² or **duress**. Can be express or implied: **custom/usage** Plaintiff goes to place/engages in activity where certain usually minor tortious invasions are routine, Plaintiff consents – e.g., Subway, sports (**even if violative** of rules of the game) or Defendant's **reasonable interpretation** of Plaintiff's overt conduct (leaning in to kiss your girlfriend). Consent is subject to objective (not subjective) interpretation, and must be within the scope!

¹ e.g., engage in wrestling, but not surgery or intercourse

² (e.g., not disclosing sexual transmitted disease in sex case)

- **Protective Privileges (Self Defense, Defense of Others, Defense of Property): Proper timing** (imminent or in progress) and Defendant **reasonable belief that a tort is about to be committed** (reasonable mistake is valid – e.g., mistaken shoplifter “shopkeeper’s privilege”). ***New York**: minority view that you must retreat prior to resorting to deadly force, unless in dwelling and police officers.
- **Necessity**: only available in defense of three property torts (land, chattels, conversion) – emergency invasion to protect the community as a whole or a significant group of people. **Private necessity**: Emergency invasion to protect an interest of his own. Must pay for actual harm done to Defendant’s property (land, building, chattels), but not nominal or punitive damages and plaintiff cannot reject him.

Defamation

Defamatory statement (allegation/assertion of fact that reflects negatively on character trait – work, loyalty, **but not opinion** (provided a **reasonable listener would not conclude it factually based**) **that specifically identifies the plaintiff**. Defamation: generally not mere namecalling. The statement need not be defamatory on its face (X person always patronizes hotel that also has a lot of prostitutes).

Elements: **defamatory statement** against a **living person** that is **published** (one person other than plaintiff himself, need not be intentional).

Libel: written defamation captured in a permanent format, damage is not required to get to the jury.

Slander: **spoken defamation**. **Slander per se**: any spoken statement by D about P re: Plaintiff’s **business or profession** (especially honesty/competence), crime of **moral turpitude**, imputing **unchastity** to a woman, **loathsome disease** (living in leper colony, VD), ***New York**: imputation of **homosexuality**; no requirement of damage to get to the jury. **Damage**: concrete economic harm (loss of contract, fired, no more patronage of business), not mental/emotional distress.

Defenses to Defamation: **Consent, Truth, Privileges**: **Absolute** (identity/status of the speaker), **Spouses**, **Judicial** (judge, attorneys, witnesses) privileges (open court, papers filed with the court cannot be the basis of defamation). **Qualified purpose**: public interest in promoting candor³, provided Defendant has a **reasonable belief** in the accuracy of the disputed statement (good faith) and **cannot inject irrelevancies**. **“First Amendment” Defamation**: matter of public concern, P must show that the **statement is false**, and that the Defendant acted **with fault** if a public figure (intent/recklessness – malice), but if a private figure (negligence).

Appropriation: the Defendant uses Plaintiff’s name or picture for a commercial purpose, subject to “Newsworthiness exception” the use of a name/picture in connection with something newsworthy is not appropriation. **This is the only privacy claim that exists in New York, and New York’s appropriation claim is statutory, and newsworthiness is interpreted very broadly.**

³ (letters of recommendation, credit reports, statements to police investigating a crime, reporting to disciplinary boards)

Intrusion: Invasion of Plaintiff's solitude in a way objectionable to the average person. Eavesdropping, listening at keyhole, peeping tom. Caution: Plaintiff must be somewhere where he has an expectation of privacy, the tort does not require a trespass. *Not available in New York.

False light: the widespread dissemination of a material misrepresentation about Plaintiff objectionable to an average person (includes non-defamatory misrepresentation e.g., misrepresents Plaintiff's beliefs (political, religious)). In defamation, you get economic damages, false light provides for emotional/dignitary harm.

Disclosure: widespread dissemination of confidential information about the Plaintiff that would be objectionable to an average person. *Newsworthiness exception: it is a tort for newspaper to publish my medical records, but not Dick Cheney's medical records.

E.g., Pete is 28 and gay, but not out at work. He goes to pride parade and gets outed at work. He sues, but loses because that is not confidential.

Affirmative defenses: Consent and absolute/qualified privilege (marriage, government, candor) are defenses to false light and disclosure.

Economic torts: **Fraud: statement**, with intent or recklessness (**scienter**), the purpose to **induce reliance** on plaintiff (central to the transaction), **reliance**, and there must be **damage** (economically – overpay). **Prima facie tort**: the intentional infliction of pecuniary harm without justification (e.g., deliberately sell goods below costs to drive personal enemy/rival out of business)

Inducing a breach of contract: A contract, knowledge of contract by Defendant, Defendant must engage in **persuasion/inducement** convincing the third party to breach, subsequent **breach**. Subject to: not a special relationship (family, lawyer).

Read the mini-Review re: other economic torts.

Negligence: **Duty, breach, causation, damage**. **Duty: care of a reasonably prudent person**⁴, *subject to* “**superior skill or knowledge**” (professional race car driver; superior knowledge of an intersection) and “physical attributes” (reasonably prudent blind person, wheelchair-bound person), **acting under similar circumstances**: owed to **foreseeable victims** (unforeseeable victims will always lose negligence lawsuits) – Cardozo “zone of danger” created by the careless act, ***except rescuers**, are foreseeable.⁵

⁴ even if you are developmentally disabled

⁵ ***Prenatal/fetal injuries in New York***: Defendant's negligence causes bodily impact on a pregnant woman (car crash), if that woman gives birth to a live baby with injuries then valid cause of action on the part of the *child*, but if stillborn, no recovery for fetus, and mother can recover for direct injury to herself and emotional distress for losing her child. In ***New York***, failure to diagnose birth defects the parents can recover costs associated with birth defects but do not recover emotional distress; **no recovery** for botched sterilization procedure

Special duty scenarios: (1) **children as Defendants** – children **under 4** have no duty of care, **4-18**: child of similar age, experience and intelligence acting under similar circumstances (subjective), *unless adult (operating a motorized vehicle) activity, (“reasonable prudent person”); hunting is regional.

(2) **Professional defendants:** (med mal) a doctor/professional owes a patient/client the care of the average member of that profession practicing in a similar community (empirical/fact investigation); ***expert** witness must educate jury, *do not be a reasonably prudent doctor, but be like others, ***stay away** from words of reasonableness, ***similar community** – “primary care physician” = geographic community; “specialists” in similar field of medicine nationwide; * no requirement to explain commonly known risks, if patient declines the information, patient is incompetent, disclosure would be harmful.

(3) **Entrant:** legal classification: **undiscovered trespasser** (no duty – unforeseeable plaintiff), **discovered trespasser** (expected/anticipated): reasonably prudent person under similar circumstances, re: conditions **possessor owes a duty to trespassor if:** artificial condition, highly dangerous, concealed condition with respect to that discovered trespasser, not open/obvious, possessor has advance knowledge IOW: known-man made deathtraps; **licensee:** enter land with permission for their own purposes and without conferring any economic benefit on the landowner, **duty:** (activities) reasonably prudent person acting under reasonable circumstances (conditions) must protect from all known, concealed conditions (traps), **invitee:** commercial purposes (store; office)/public (hospital, airport) – (activities): reasonably prudent person, (conditions): **duty to protect** from known/could have discovered through reasonable (not perfect) inspection, concealed conditions (all reasonably knowable traps).⁶

Two ways to satisfy duty: fix the problem or by **warning**. *New York does not use land-entrant’s status as a legal indicator of appropriate duty standard, generally owe “reasonable prudence under the circumstances,” but talk about entrants to enhance essay.

(4) **Statutory standards of care:** Negligence per se - **member of class** of persons the statute seeks to protect, event **within the class of risks** the statute seeks to prevent (no reasonableness/emergency defenses). *If compliance with the statute is more dangerous than violation, don’t borrow the statute.

(5) **Duties to act affirmatively:** No duty to rescue, *except: Defendant caused the peril, preexisting relationship: family, common carrier/innkeeper, land possessor *if reasonable under circumstances*. Gratuitous rescuer is liable for negligence, *subject to “New York Good Samaritan Statute”*: a nurse/physician/veterinarians gratuitously rescuer not liable for simple negligence (but liable for gross).

⁶ *Firefighters never recover for inherent risks, *child trespassers entitled to reasonably prudent person care with re: artificial conditions on the land “how likely is it that children will trespass”, the greater the higher standard of care “particularly appealing condition” if they will not “know/appreciate the danger”.

(6) **Negligent infliction of emotional distress**: (no direct trauma to body of P, that is ordinary negligence) P is in a **zone of physical danger** (“near miss”) and **subsequent physical manifestations** of the distress (woman miscarries, heart attack, rash – does it “reasonably rule out fraud”). The **Bystander distress claim**: the distressed party has close loved one get creamed - **New York**, “Zone of danger” (very strict).

(7) **No fault insurance**: supplants negligence in minor automobile accident cases? Cause of action is barred in court. On the insurance side, **in New York you must buy no-fault insurance** (\$50k minimum coverage) and **residual liability coverage to protect you in the tort instance**. No fault to personal injury only, **but not** pain & suffering (not property damage – conventional negligence claim), insurance company of the vehicle that you are in, or hit you if you’re on foot. *E.g.*, Joe gets into an accident with Nancy, the follow look to Joe’s policy for compensation: Joe, driver of Joe’s car, any passengers in Joe’s car, any pedestrians hit by Joe’s car (even if they themselves are negligent), *but not drunk drivers, car thieves, fleeing felons, and drag racers*.

If greater basic **economic loss** (medical expenses, portion of unreimbursed earnings/wages exceeding \$2000/mo, to see if exceeds \$50,000 in one year) **or** if you have suffered “**serious injury**” then tort system *If you have out of state accident in NY insured car, still may have a claim against insurance.

Breach: “Looking away from the road while driving is breach, and that is not reasonable because reasonable people watch the road.” **Identify specific wrongful conduct of the Plaintiff and explain why it is wrongful.**

Res Ipsa Loquitur: P’s burden (1) The accident is one **normally** associated with **negligence of some kind** (e.g., expert), (2) the accident which occurred is normally due to negligence of one **in this D’s position (control over object/instrumentality)**. Jury question, *sometimes* judge.

Factual causation: connection/linkage between breach and the ultimate injury suffered. The breach must be the factual cause (not the Defendant). “But for” test. **Multiple defendants**: “Substantial factor” (Was the breach of each defendant a substantial factor contributing to P’s injuries, if yes, both are liable). **Unascertainable causes**: (simultaneous acts of negligence (two gun shots from same spot)) **shift the burden of proof**, Defendants must show their breach was not the cause; if neither can show, jointly liable, if one can show, exculpated.

Proximate cause: legal (foreseeable, is liability fair) cause. *E.g.*, driver who ran the red light is liable for **medical negligence** (amputated leg), **good samaritan** (injured trying to drag them to safety), **intervening protection/reaction forces** (stampede, steps on victim), and **subsequent disease or accident** (Defendant left in a weakened/debilitated position – victim falls at home due to cast and breaks his hand). **Indirect cause**: Serve bad shrimp, consumer vomits on floor, another consumer slips and falls. Issue: does bad shrimp foreseeably break arm? No, no liability is unfair, no recovery.

Damage: ***New York has no collateral source rule** (tort recovery in New York will be reduced by sums received from other sources, such as first party health insurance). Once Defendant is shown to have

committed all the elements of tort, **Defendant pays for all damages suffered by P, even if surprisingly great in scope** (egg-shell Plaintiff – applies to *all* torts).

Equity:

No injunction absent a merits tort: P must show D committed tort, and (1) **no** adequate remedy **at law** (money damages – e.g., insolvency) (2) D's tort has invaded a **protectable right or property interest** (e.g., no injunction for battery), (3) Injunction will be **enforceable** (how detailed, extraterritorial) (4) **balance of hardships** tips in Plaintiff's favor (e.g., would injunction put D out of business?, the more egregious D's conduct, the more favorable to P). Injunction + damages are not mutually exclusive.

Defenses against injunction (not tort) relief: (1) **unclean hands** (P is guilty of moral wrongdoing disqualifying from request of relief) (2) **laches**: undue delay, material prejudice to Defendant (3) **1st Amendment** (especially media Defendants) .

Preliminary injunctions preserve status quo (not relief) while suit is pending: a **likelihood of success** on the **merits, irreparable harm** (balance of the hardships decidedly in favor of P), plus bond.

Affirmative Defenses: comparative fault/responsibility/negligence: D offers evidence that P has failed to exercise proper care (reasonable prudent person – if a child, child standard) for his own safety. Jury must then be instructed to compare breach of Defendant with carelessness of Plaintiff and assign each a % number; P's recovery is reduced in accordance. **Pure comparative negligence (New York):** Plaintiff always recover something, even if P is majority at fault; *unless P was engaged in serious criminal activity at the time of his activities*. **Modified/Partial Comparative:** Plaintiff's fault over 50% bars recovery; under 50% reduces recovery.

Strict liability: Injuries caused by **animals**: (1) **domestic animals** – no SL, unless you have knowledge of the animal's vicious propensities (SL) – bite 1 (negligence), bite 2 (SL); (2) **trespassing cattle**: SL (3) wild animals: SL. Safety precautions are legally irrelevant. **Ultra Hazardous Activities:** [cannot be made **reasonably safe** given existing technology, **risk** of severe harm, **uncommon** in the area being conducted]: on MBE (blasting/explosives, highly dangerous/toxic chemical/biological agents).

Worker's Compensation: entitlement to money recovery without the need to prove fault, does not include pain/suffering or punitive. Statutory insurance scheme, exclusive remedy of employee injured on the job against their employer. Key: an Employer is strictly liable, but is immune from a tort suit (along with co-workers). **Employees** are covered by WC, **except:** teachers and white collar/non-manual laborers employees who work for non-profits, part-time household employees (babysitter, cleaning person) clergy. **Independent contractor is not** covered.

Types: injuries that **arise out of employment** (but not solely due to intoxication, intentional injury, voluntary off duty athletic activity. **Illegal acts** by EE that yield injury **are covered** if on the job.

Recovery: Medical expenses + 2/3 of average weekly wage rate (your expenses are lower b/c you are not going to work); if a fatal accident, statutory specified death benefit + funeral expenses.

Employee injured on the job may sue any 3rd parties: e.g., equipment manufacturers or multiple firms working together (general contractors, subcontractors (plumber) – plumbing contractor claims he got hurt by toolbox left by contractor: WC from his boss and can sue carpenter K'er and general K'er for negligence). Third party may seek indemnification from employer.

*Note: person injured by a product, multiple causes of action: negligence claim (*res ipsa*), breach of warranty claim, **strict liability**: (1) Defendant is a **merchant**, not casual sellers or service providers, every merchant in the distribution chain is SL (no privity of K required), (2) product is **defective**: **manufacturing defect** (different from others on assembly line in a way making it more dangerous than consumers would expect) or **design defect**: alternative, identifiable design – P must show that HAD is **safer** than marketed product, **cost-neutral** (about the same price), **practical** (does not undermine central function/harder to use), product has **not been altered** since it left D's hands (if the product travelled in ordinary channels of distribution, it is assumed that it is not altered – D must raise the issue if it is not in evidence), P was making a **foreseeable use** (not limited to proper/intended use) of product.

Residual risk: If a product cannot be physically redesigned to be safer in a **cost-neutral** and **practical way** and if it has a **residual risk not** apparent to users, that product must bear a warning or it is a defective product (must be clear & reasonable – may require multi-lingual, pictures/symbols).

Affirmative defense: Defendant's liability reduced by comparative responsibility – any Plaintiff foolishness/failure to follow instructions.

Nuisance (incompatible land use): A defendant has committed a nuisance if its activities unreasonably interfere with P's ability to use/enjoy P's land. Unreasonableness is a balancing of interests: Defendant's right to use land vs. Plaintiffs right to enjoy land.

Vicarious liability: (1) **Employer/Employee** (within scope of employment). **Scope – Frolic** (major departure, destroys liability) or **Detour**: minor departure from the work does not take the employee outside the scope of employment and leaves the boss still vicariously liable. **Intentional torts**: generally outside scope of employment, unless boss *authorized* EE to use force for any part of the job, job generates *friction/tension* (e.g., debt collector), employee is acting to *serve* the employer's purposes in a misguided or overzealous way. (2) **Automobile owner/driver**: MBE - Owners are not liable for the torts of drivers, **unless** driver is doing an errand for the driver. By statute, car renter is not liable for torts of rentee ***New York**: Owner is vicariously liable for all torts committed by all drivers with permission, **unless retail/rentee** (federal statute trumps). (3) **Independent contractor/hiring party**: Hiror not independently liable for torts of independent contractor, but if land possessor hires independent contractor to work on the property, and that contractor hurts an invitee, possessor is vicariously liable. (4) **Parents/kids**: parents are not vicariously liable for the torts of their kids, subject to small NY

statutory exception up to \$5000 in limited cases. **But the rule is irrelevant where parent is not a purely passive party** (e.g., kid shoots neighbor, Parent was negligent, no need for vicariously liable).

Multiple Defendants (A, B, C): Assume Plaintiff have won & collected all money from A. Rights of A:

Comparative contribution rule: jury assigns each Defendant a percentage and the reimbursement rights between the Defendants are based on those percentages. **Indemnification: Vicarious liability party** can get all money back from active tortfeasor; (2) **SL claims for defective product**, if you are a non-manufacturer, get all money back from manufacturer. *NY Rules on defendant contribution are in CPLR.

Loss of consortium: in any case where the victim of a tort is married, the uninjured spouse of victim gets a separate tort claim: (1) loss of services, (2) loss of society (3) loss of intimate relations